



City of Duvall
WASHINGTON

Resolution No. 26-02

**A RESOLUTION OF THE CITY COUNCIL OF THE
CITY OF DUVAL, WASHINGTON, ADOPTING
UPDATED CITY COUNCIL PROCEDURES,
PROVIDING FOR SEVERABILITY AND EFFECTIVE
DATE.**

Whereas, the City Council of the City of Duvall is committed to conducting its meetings in an efficient, transparent, and orderly manner; and

Whereas, clear and consistent procedures promote fairness, public participation, and effective governance; and

Whereas, the Revised Code of Washington in § [35A.11.020](#) allows for Code Cities to adopt formal rules of procedure to govern the conduct of their meetings; and

Whereas, the City Council periodically reviews its rules of procedure to ensure alignment with best practices, legal requirements, and the evolving needs of the community; and

Whereas, the City Council desires to adopt updated procedures to improve meeting efficiency, clarify roles and responsibilities, and enhance public engagement.

Now, Therefore, Be It Resolved BY THE CITY COUNCIL OF THE CITY OF DUVAL, WASHINGTON, AS FOLLOWS:

Section 1. Repeal of Council Procedures. The City Council hereby repeals its rules as adopted by this body on February 7, 2023. All prior resolutions, rules, or policies governing City Council procedures that are inconsistent with the procedures adopted herein are hereby repealed or superseded.

Section 2. Adoption of Council Procedures. The City Council hereby adopts the “City of Duvall Council Procedures,” attached hereto as *Exhibit A* and incorporated herein by this reference.

Section 3. Purpose and Interpretation. The adopted procedures are intended to supplement applicable state law, including the Open Public Meetings Act. They shall



be interpreted to promote orderly conduct of meetings, fairness in deliberation, and public accessibility.

Section 4. Severability. If any provision of this resolution or the adopted procedures is held invalid, such invalidity shall not affect the remaining provisions.

Section 5. Scrivener's Errors. If any scrivener's errors, inadvertent mistakes, or typographical errors are discovered in the drafting or publishing of this resolution or any of the attachments thereof, such errors shall be corrected by the City Clerk without further action by the City Council. Any such correction shall be deemed an integral part of this resolution and shall not alter its intent, meaning, or legal effect.

Section 6. Effective Date. This resolution shall take effect starting May 6, 2026.

Section 7. Publication. The City Council hereby instructs its City Clerk to publish these updated rules on the City's website and provide Councilmembers and the Mayor with a printed copy if a Councilmember or the Mayor asks for a printed copy of the same.

Adopted BY THE CITY COUNCIL OF THE CITY OF DUVALL AT A REGULAR MEETING THEREOF ON THE FIFTH DAY OF MAY 2026.

City of Duvall

Amy McHenry, Mayor

Attest, Authenticated:

John Botero, City Clerk

Approved as to form.

Oskar E. Rey, City Attorney

City Council Procedures

Adopted by Resolution 26-02
May 5, 2026



Small Town. Real Life.

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Chapter 1. Introduction

1.1 Overview

The function of a Councilmember is that of a legislator. The Duvall City Council is a legislative body to which the state constitution has given authority to make laws within the City's jurisdiction. This includes setting the budget and developing new legislation, including regulations and policies.

The roles and responsibilities of the Mayor and City Council are outlined in RCW Chapters [35A.11](#) and [35A.12](#). The City of Duvall operates under a Strong Mayor-Council form of government, in which all legislative power rests with a majority vote of the legislative body. The role of the Mayor is to propose, coordinate, and implement directives and policies approved by the Council and oversee the administrative authority of City departments.

As in many governmental entities, Duvall has three branches: Legislative, Executive, and Judicial. Each branch provides a continuous improvement/oversight function on the other and works as a collaborative team to make our community a better place to live, work, play, and visit.

1.2 Legislative Goals and Priorities

Each year, the City has an opportunity to develop and review its legislative goals, identify issues, and explore potential partnerships to provide municipal services to its residents.

The purpose of the City Council's goals is to articulate Duvall's key policy and service priorities. Council goals and priorities guide the allocation of resources through the budget and capital improvement program to ensure that organizational work plans and projects are developed that incrementally move the community towards the stated goals. Council goals are long-term in nature.

The City's ability to make progress towards its achievement is based on the availability of resources at any given time. Implicit in the allocation of resources is the need to balance levels of taxation and community impacts with service demands and the achievement of these goals.

- A. *Investments in City Infrastructure Needs*
- B. *Address Funding Challenges*
- C. *Transportation and Public Safety*
- D. *Expanding City Parks*
- E. *Housing Affordability*
- F. *Unfunded Mandates & Local Autonomy*

1.3 Core Values and Principles

Transparency – The City Council conducts its work openly and honestly, ensuring that decisions, processes, and information are accessible to the public. Transparency includes timely communication, clear documentation, and a commitment to sharing the rationale for Council actions, enabling residents to engage confidently with their local government.

Inclusion – The City Council actively seeks and values participation from all community members. Inclusion means creating equitable opportunities for residents to be heard, removing barriers to engagement, and ensuring that diverse perspectives inform policy discussions and decisions.

Stewardship – The City Council manages public resources responsibly, ethically, and with long-term community benefit in mind. Stewardship includes thoughtful financial management, sustainable planning, and a commitment to preserving the City’s assets for current and future generations.

Collaboration – The City Council works cooperatively with residents, staff, regional partners, and community organizations to achieve shared goals. Collaboration means approaching challenges with openness, respect, and a willingness to build consensus, recognizing that effective governance relies on strong relationships and collective problem-solving.

1.4 Basic City Documents

This document provides detailed guidance on City Council processes and procedures and should be considered the default resource on proper operating procedure; however, it does not include all information and laws necessary to carry out Council duties. In addition to the summaries listed below, the Council is required to follow and implement other laws, plans, and documents.

A. Duvall Municipal Code

The Duvall Municipal Code contains all local laws and regulations adopted by ordinance. [Title 2](#) addresses the role of the City Council, including the committee structure and the appointment of the Mayor Pro Tempore. This title also addresses the City Administrator, Boards, Commissions, and Advisory Committees.

B. Revised Code of Washington

The Revised Code of Washington (RCW) contains many requirements governing the operation of the City government and the administration of City Council meetings in Washington State. The City of Duvall is classified as a “code city” by the RCW.

C. Budget

The budget is the most significant policy document approved by the Council. It should be used as the primary tool for achieving Council goals and guiding process policy. Approval of the budget, including periodic amendments, sets the City's two-year priorities, allocates financial resources, and provides the framework for government operations.

D. Annual Financial Report

The City prepares an annual financial report using the cash-based method of accounting prescribed by the Office of the Washington State Auditor. The statements include the Fund Resources and Uses Arising from Cash Transactions, which, along with the Notes to the Financial Statements, reflect the results of

operations and the City's beginning and ending fund balance. Also included is the Schedule of Liabilities, which provides information on the City's outstanding debt and liabilities.

E. Comprehensive Plan

A state-mandated comprehensive plan addresses the City's long-range planning needs related to land use, transportation, economic development, and other planning elements. The City's comprehensive plan is reviewed continuously but may be revised only once per year, except as state law provides otherwise. State law requires a full plan review and update every 10 years.

F. Six-Year Capital Improvement Program

The six-year Capital Improvement Program serves as a guide for determining priorities, planning, financing, and constructing capital projects that add to, support, or improve the physical infrastructure, capital assets, or productive capacity of City services.

G. Emergency Management Plan

The City maintains a Comprehensive Emergency Management Plan ([CEMP](#)) that outlines actions to be taken during emergencies. The Mayor has the authority to declare an emergency. The City Council may be called upon during an emergency to establish policies related to a specific incident or to assist in other capacities. As such, each Councilmember must know the City plan and understand their role when an emergency is declared.

1.5 Councilmember Orientation

New members of the Duvall City Council need to understand the full range of services and programs the City provides. An orientation to review Council roles and responsibilities with the City Administrator or their designee is required within 30 days of taking office as an initial step. New members should tour municipal facilities and meet with key staff, as coordinated by the City Administrator.

New members must also attend the Association of Washington Cities-sponsored Newly Elected Officials training or similar training and complete fundamental emergency management preparedness training within their first year of service. Under the Open Government Trainings Act, new Councilmembers must take Public Records Act and Open Public Meetings Act training no later than 90 days after they take their oath of office or duties of office.

Chapter 2. General Powers and Responsibilities

2.1 Role of the Council Body

The powers of the City Council are to be utilized for the good of the community and its residents and to provide for the citizenry's health, safety, and general welfare. The City Council is the policy-making and law-making body of the City. State law and local ordinances grant the Council powers and responsibilities.

It is important to note that the Council acts as a body and speaks with one "corporate voice." No member has any extraordinary powers beyond those of other members. All members are equal. A majority vote of the Council establishes the policy. While individual members may disagree with the majority's decisions, a decision binds the Council and the City to a course of action. Councilmembers should respect the adopted Council policy. Additionally, the staff is responsible for respecting the adopted policy and ensuring it is upheld and implemented.

Council Non-Participation in Administration

To uphold the integrity of the mayor-council form of government and to provide proper checks and balances, members of the City Council shall refrain from becoming involved in directing the administrative affairs of the City and its administrative staff. As the Council is the legislative policy-making body and the maker of local laws, its involvement in enforcing ordinances could conflict with the administrative purposes of government if these duties were combined.

Except for inquiries submitted to the City Administrator or Mayor, the execution of Council policies is the sole responsibility of the Mayor or their designees, and neither the Council nor any committee or member of a committee shall give orders or direction to any subordinate of the Mayor.

Additionally, it is recognized that the Mayor may, in a public meeting, request that individual Councilmembers or a committee of Councilmembers participate in developing administrative policies, such as job position descriptions, candidate interviews, program evaluations, and program development. When the Mayor makes such a request or grants permission upon request of the Council, the Councilmember(s) may work with City staff for a defined purpose.

There can be a fine line between the Legislative and Executive branches and their roles and responsibilities. Councilmembers must seek to understand this distinction and their role in City government.

2.2 Role of Individual Councilmembers

Members of the Council are collectively responsible for establishing policy, adopting a budget, and developing vision and goals with the Mayor. The following outline briefly describes the various duties of Councilmembers. The description is not intended to be comprehensive, but an effort to summarize the Council's primary responsibilities.

Summary of Council Duties and Responsibilities as Provided in, but not limited to, the Washington Administrative Code and Revised Code of Washington:

- A. Establish Policy
 - 1. *Adopt goals and objectives*
 - 2. *Establish priorities for public services*
 - 3. *Approve/amend the operating and capital budgets*
 - 4. *Approve contracts under the Procurement Policy*
 - 5. *Approve resolutions*
- B. Enact Local Laws
 - 1. *Adopt ordinances and resolutions*
- C. Provide Public Leadership
 - 1. *Relate constituents' wishes to promote representative governance*
 - 2. *Mediate conflicting interests while building a consensus*
 - 3. *Call special elections as necessary*
 - 4. *Communicate the City's vision and goals to constituents*
 - 5. *Represent the City's interest at the regional, county, state, and federal levels*
- D. Decision-Making
 - 1. *Study problems*
 - 2. *Review Alternatives*
 - 3. *Determine the best course of public policy*

2.3 Role of the Mayor

The Mayor is the City's chief executive and is responsible for administering the City, including hiring and terminating appointed officers and employees. The Mayor presides over meetings of the Council but shall have a vote only in the event of a tie in the votes of the Councilmembers, according to [RCW 35A.12.100](#) and [RCW 35A.12.110](#). The Mayor holds veto authority over ordinances but may be overruled by a majority plus one vote of the Council, which has 5 members. The Mayor's role and responsibilities are also described in several sections of the DMC.

2.4 Role of the Mayor Pro Tempore

The Mayor Pro Tempore (Mayor Pro Tem) shall act as Mayor in the Mayor's absence. The Mayor Pro Tempore shall have such powers and authority as the Mayor, in the absence or temporary disability of the Mayor, but will retain their Councilmember voting privileges. If a permanent vacancy occurs in the Office of Mayor, the Mayor Pro Tempore will act as Mayor until the vacancy is filled at the next general election. If the Mayor Pro Tempore is acting as Mayor on a semi-permanent basis, an alternate Mayor Pro Tempore will be chosen by the Councilmembers through nomination and majority vote of the Council.

The Mayor Pro Tempore may act on the Mayor's behalf during the Mayor's absence from the City or temporary disability, with such power and authority as the Mayor shall grant in writing. The Mayor Pro Tempore shall also work with the Mayor and City Administrator to actively set Council and Committee of the Whole Agenda items.

Councilmembers shall nominate and elect one of their peers as Mayor Pro-Tempore by majority vote. The election of the Mayor Pro Tempore shall occur every two years, and the Council reserves the right to elect a Mayor Pro

Tempore more often, if necessary. The selection of the Mayor Pro Tempore is codified under [2.01.080](#) of the DMC. The Mayor Pro Tempore shall be elected at the first Council meeting in January, based on the majority vote of new members. Unless otherwise determined by the Council, the term of the Mayor Pro Tempore shall be from January 1 through December 31 of the following year.

The Mayor Pro Tempore is the Chair of the Committee of the Whole (COW), which convenes when the Council holds a Council workshop or when a quorum of Councilmembers convenes outside of a regularly scheduled meeting of the City Council to discuss items of City Council business, such as at Council retreats.

If the Mayor Pro Tempore resigns, the City Council will appoint a new Mayor Pro-Tem by majority vote at the next regularly scheduled Council meeting to serve the remainder of the unfinished term.

2.5 Absence of the Mayor and Mayor Pro Tempore

If both the Mayor and Mayor Pro Tempore are absent, the Council shall choose from among its members a person to serve as acting Mayor Pro Tempore, who shall, for the term of such absence, have the power of the Mayor Pro Tempore.

If the Mayor Pro Tempore or other Councilmembers are absent from the City for more than 15 days, they shall notify the City Clerk of such planned absences. Further procedural information on Councilmember absences is contained in section 6.16.

2.6 Appointments to Advisory Bodies, Boards, and Commissions

A. Mayor Appointments and Council Confirms

Boards, commissions, and resident committees provide a great deal of assistance to the City of Duvall. The City has several standing boards and commissions. The Mayor recommends appointments to City Advisory Bodies, Boards, and Commissions with Council confirmation. The following procedures will be followed when appointing boards, commissions, or other positions requiring Council confirmation.

1. Vacancies are communicated to the community; applications are reviewed by a selection committee chosen by the Mayor, and a recommendation is made to the Mayor for consideration.
2. On a Council agenda, at a regular Council meeting, a business item will require a formal motion from the Council confirming the Mayor's appointment. The candidate for appointment will be asked to attend the Council meeting, and the appointment will be placed on the agenda near the beginning.
3. The Mayor may recommend reappointing a board member, examiner, or commissioner to an additional term based on regularity of attendance, understanding of board or commission function, demonstrated leadership, effectiveness, demonstrated contribution, and objectivity.
4. If a majority of the Council does not confirm the appointment, the Mayor may appoint another applicant, and the Council will again vote on confirmation of that applicant.

B. Representation by Councilmembers

The City Council is often requested to appoint, or to recommend the appointment of, Councilmembers to serve on outside boards, councils, commissions, or committees. This type of representation facilitates communication and interaction with other governmental bodies for the benefit of the City. The City Council appoints members to certain groups as needed or upon request.

Membership appointments to these groups shall be made by consensus of the Council, and the City Clerk shall maintain a record of the decision and the term length. If more than one Councilmember desires to serve as a member of a particular outside group, the members for that group will be appointed by a majority vote.

Where applicable, the Council will appoint an alternate to attend outside boards, councils, commissions, or committees if the main delegate to such a group cannot attend a meeting. If, after hours, the main delegate realizes they will be unable to attend an upcoming meeting of the outside group, they will notify the alternate as soon as possible.

Councilmembers participating in policy discussions at regional meetings will represent the consensus of the Council, except where regional appointments require regional opinion. Personal positions, when given, will be identified and not defined as the position of the City. Assignment and direction of staff about regional meetings are at the discretion of the Mayor or their designees.

C. Councilmembers' Role, Relationship with, and Membership on City/Citizen Advisory Bodies

The City has many boards and commissions, including the Library Board, Planning Commission, Duvall Cultural Commission, and Civil Service Commission. The City also creates temporary boards and commissions at times to address specific projects and programs.

1. Under the provisions of state law, Councilmembers shall not be appointed to City advisory bodies concurrent with their term of office as Councilmembers.
2. Unless authorized explicitly by majority vote of a quorum of the Council, no Councilmember shall be authorized to state or testify to the policy position of the Council or before any advisory board or commission of the City.
3. Limitations on the conduct of Councilmembers before the City's advisory boards and commissions should be voluntarily undertaken to assure public confidence in the decision-making process and avoid the appearance of bias, prejudice, or improper influence. Toward this purpose, the following protocol should be observed:
 - a. Councilmembers shall not testify in quasi-judicial matters pending before any advisory board or commission that will receive or potentially receive future appeal or review before the City Council. Violating this protocol may require the Councilmember to disqualify themselves from participating in any appeal or review proceedings before the City Council.
 - b. Councilmembers, in their capacity as private citizens, should refrain from providing testimony in legislative or administrative matters pending before any advisory board that will receive or could

potentially receive future review or other action before the Council. Where a Councilmember elects to provide such testimony, the following rules shall apply:

- (i) The Councilmember shall declare at the outset and on the record that the Councilmember is present in their private capacity as an interested resident and not on behalf or at the request of the City Council.
- (ii) The Councilmember shall refrain from stating or implying that the Councilmember's position or opinion is that of the City Council.
- (iii) The Councilmember shall refrain from directing City staff or the advisory body to take any action on behalf of the Councilmember.
- (iv) The Councilmember shall observe any rules of procedure or protocol that apply to any other private resident testifying before the advisory board.

2.7 Filling of City Council Vacancies

According to [RCW 42.12](#), should a Council position become vacant for any reason (resignation or removal) before the Councilmember's term of office expires, the position shall be filled only until the next regular municipal election to serve the remainder of the unexpired term. A Council position shall be officially declared vacant upon the occurrence of any of the causes of vacancy outlined in [RCW 42.12.010](#), including resignation, recall, forfeiture, written notice of intent to resign, or death of a Councilmember. A Councilmember who is vacating their position cannot participate in the appointment process.

As a matter of Council policy, the Council shall schedule the appointment process and vote at the end of new business on the agenda, where action is to be taken on the filling of City Council vacancies.

- A. The City will advertise the position for a minimum of 21 days.
- B. Staff receive and distribute applications to City Councilmembers after the closing date (staff verifies each applicant's address to verify they reside in the City limits).
- C. Each Councilmember telephones or personally interviews each candidate.
- D. If there are three or fewer candidates, skip to step F. If more than three candidates apply, the field of candidates is narrowed to three 3 in the following manner:
 - 1. In a Council meeting, the Council goes into executive session to discuss each candidate's qualifications.
 - 2. When the Council meeting resumes, a vote by a matrix is conducted in open session.
 - 3. Each Councilmember receives one vote per candidate.
 - 4. Candidates with the top 3 quantities of tallied votes will be selected for subsequent interviews.
 - 5. Ties will be determined by a subsequent runoff vote, preferably conducted during the same meeting, until three candidates remain.

- E. Staff notifies all candidates of status.
- F. Remaining candidates attend a Council meeting to be publicly interviewed and compete for selection in the following manner:
 - 1. Questions asked in the interviews will be determined in advance by the City Council. Each Councilmember will submit 1-2 questions by e-mail to the Mayor Pro Tempore at least one week before the Council meeting when interviews are scheduled. The Mayor Pro Tempore will review those questions and develop a slate of questions to ask of candidates.
 - 2. During a Council meeting, the Mayor Pro Tempore will ask each candidate the same 2-3 questions while other candidates stay outside the room during individual interviews.
 - 3. The candidate can make a 2-minute closing statement after the interview.
 - 4. After interviews are completed, the Council shall go into executive session to discuss each candidate's qualifications.
 - 5. When the Council meeting resumes, a vote by the matrix is conducted in an open session.
 - 6. Each Councilmember receives one vote per candidate.
 - 7. Ties will be determined by a subsequent runoff vote, preferably conducted during the same meeting until one candidate remains.
- G. The candidate chosen to fill the position is named and may be sworn in at that time.

Chapter 3. Support Provided to City Council

3.1 Council/Staff Interactions

The Council policy is implemented through dedicated professional staff. Therefore, the relationship between Council and staff must be well understood by all parties so policies and programs may be implemented successfully. To support effective relationships, roles must be clearly recognized.

The City Council also supports and acknowledges that the Council, the Mayor, the City Administrator, and staff are most effective when working as a team, and as such, the Council endeavors to support mutual respect between the City Council and City staff by creating the organizational teamwork necessary for successful implementation of the Council's policies and programs.

The full City Council retains the authority to accept, reject, or amend the staff recommendation on policy matters. However, members of the City Council must avoid intrusion into those areas that are the responsibility of staff. Individual Councilmembers may not intervene in staff decision-making, the development of staff recommendations, the scheduling of work, or the execution of department priorities without the prior knowledge and approval of the City Council as a whole.

A. Guidelines.

The following shall guide interactions between Councilmembers and City staff:

- There will be mutual courtesy and respect from both City staff and Councilmembers toward each other and of their respective roles and responsibilities.
- City staff will acknowledge the Council as policy makers. Councilmembers will acknowledge City staff as subject-matter experts who provide consultation to the Council and administer policies set by the Council.
- Except as provided by State law through legislative action, Council shall not interfere with the administrative functions of the City or the professional duties of City staff; nor shall they impair the ability of staff to implement Council policy decisions.
- Any personnel concerns shall be communicated to the City Administrator.
- All Councilmember requests for information or staff action shall include or be directed through the Mayor or City Administrator.
- No individual Councilmember shall direct City staff.
- Councilmembers shall not attempt to coerce or influence staff to engage in any act that is in conflict with, or creates an appearance of conflict with, the performance of official duties.

B. No Surprise Rule.

Councilmembers should use their best efforts to:

- Contact the Mayor or City Administrator to advise of emerging issues.
- Provide staff with advance notice of any questions or concerns they may have on agenda items before a public meeting, if possible, to allow for staff preparation. Staff responses to such requests will be provided to the full Council.
- Provide staff and City Council with advance notice if planning to propose substantial amendments or revisions to any agenda item.

3.2 Role of the City Administrator

The City Administrator, at the direction of the Mayor, is empowered to direct the daily operations of City government, to prepare and monitor the principal budget, and to implement the policies and programs initiated by the City Council. The City Administrator is responsible to the Mayor and directs and coordinates the various departments. The City Administrator is responsible for managing all department directors and authorizing all other personnel positions. The City Council authorizes positions through the budget process; based upon that authorization, the City Administrator, in coordination with the Mayor, makes the appointments.

3.3 Role of City Staff

The Council recognizes the primary functions of staff as executing Council policy and actions taken by the Council, and keeping the Council informed. Staff are obligated to take directions and guidance only from the Mayor and City Administrator. This direction follows the City Council's overall policy guidance. Staff is directed to reject any attempts of individual Councilmembers to unduly direct or otherwise pressure them into making, changing, or influencing staff recommendations.

3.4 Role of the City Attorney

The City Attorney is the legal advisor for the Council, its committees, commissions, and boards, the City Administrator, and all City officers and employees with respect to any legal question involving an official duty or any legal matter on the affairs of the City.

Councilmembers seeking advice or an opinion from the City Attorney shall first discuss the request with the Mayor or City Administrator to ensure there is a sharing of pertinent information, that financial impacts are evaluated, and that efforts are not duplicated. This is not intended to restrict Councilmembers from seeking legal advice directly from the City Attorney, particularly in cases related to conflicts of interest or appearance of fairness disclosures.

The general legal responsibilities of the City Attorney are to:

- A. Provide legal assistance necessary for the formulation and implementation of legislative policies and projects.

- B. Represent the City's interest, as determined by the City Council, in litigation, administrative hearings, negotiations, and similar proceedings.
- C. Prepare or approve as to form ordinances, resolutions, contracts, and other legal documents to reflect best and implement the purposes and intentions of the City Council.
- D. Keep the City Council and staff apprised of court rulings and legislation affecting the legal interests of the City. It is important to note that the City Attorney does not represent individual members of the Council, but rather the Council as a whole.

Note: These responsibilities do not include providing opinions or advice on what could objectively be viewed as non-legislative matters and/or questions of a political nature.

3.5 Information Requests

The City Administrator is the primary liaison between the Council and the City staff. Requests for information from Councilmembers are to be directed to the City Administrator, who will respond promptly. The requested information will be copied to all Council members so that each member may be equally informed.

Sharing information with the City Council is one of the City Administrator's highest priorities. There are limited restrictions on when information cannot be provided. The City is legally bound not to release certain confidential personnel information. Likewise, certain aspects of police department affairs (e.g., access to restricted or confidential information related to crimes) may not be available to City Council members.

Councilmembers shall exercise discretion in submitting requests, as the number and complexity of requests may affect City resources. To reduce the impact on City resources, the following process should be followed when requesting administrative support from staff:

If a Councilmember has a time-sensitive question or concern outside a public meeting, they should e-mail the City Administrator and/or the relevant Department Director, and copy the Mayor and the Mayor Pro Tempore. All correspondence with Department Directors should also include the City Administrator. E-mail is the preferred method of communication for legislative requests from the Council; however, this does not preclude a phone or in-person conversation for simple questions.

Telephone or in-person conversations should be followed up with an email for documentation. The City Administrator shall strive to capture questions raised by individual Councilmembers and report them, along with staff responses, back to the Council as a whole to promote transparency and ensure all Councilmembers have access to the same information.

A. *Two-Hour Rule*

Should a request from a Councilmember require staff time in excess of two hours or other City resources or require that the staff or City Administrator change direction from prior direction by the Council or the Mayor, the request may be brought to the full Council by the City Administrator at the next scheduled Council meeting to obtain consensus before expending additional staff time and resources.

B. Types of Information Requests

1. *Simple Information Request (Minimal)*

Examples: Questions of fact, Yes/No questions, simple status updates, or clarifying information that does not require extensive research and/or documentation.

2. *Research on an Upcoming Agenda Topic / New Legislative Request (Significant)*

Example: Requests outside the scope of providing simple information that may require research or documentation exceeding the Two-Hour rule.

- a. Agenda packets will be made available on Thursday afternoon, the week before the meeting. Councilmembers may submit questions regarding packet materials to the City Administrator, copying the Mayor Pro Tempore.
- b. The City Administrator shall collect all questions received by 3:00 pm on Monday and distribute them to staff for answers and/or input. By midday on the Tuesday of a Council meeting, the City Administrator shall distribute to the full Council staff responses that don't require Council direction.
- c. Staff will attempt, but are not expected, to answer any questions received by 11:00 am on Tuesday. Staff is not expected to answer questions for the upcoming Tuesday Council meeting after 11:00 am.

3. *Resident Concern or Request for Service (Referral)*

When a Councilmember receives a constituent concern, they will forward it to the City Administrator with the expectation of a timely response, and copy the City Council or the Councilmember. Constituent concerns brought forward by Councilmembers are not to be considered personal requests by Councilmembers; providing information and responses to constituents is at the core of the elected official's responsibility.

Relayed constituent concerns and requests should be objective, in writing, and as straightforward as possible to state the desired information. The Councilmember should also be willing to assist with the request if not in conflict with the roles and responsibilities of a Councilmember.

Note: Councilmembers can also direct constituents to the [City Action Request](#) form on City Clerk's Office section of the City's website, where they can request service.

3.6 Office Equipment

To enhance Councilmembers' service to the community and their ability to communicate with staff and the public, the City shall provide meeting facilities and office equipment for City business.

A. *Computing Device*

The administration will provide a computing option upon a Councilmember's request. The City technology policies shall govern the use of the device.

B. Communications

The City will provide Councilmembers with City e-mail accounts, cellular phones, or social media accounts for City business communications. To reduce legal risk and increase access to public records, Councilmembers must use city-issued telephones, e-mail, or social media accounts for City business.

If Councilmembers are utilizing personal accounts for City business, they shall provide the City's Public Records Officer with access to personal devices and accounts for conducting searches for public records should it become necessary to comply with such a request.

C. Other Equipment

Councilmembers can use copy machines and similar equipment to conduct City business.

3.7 Meeting Rooms

Use of City meeting rooms for City business may be scheduled by contacting the City Clerk's Office. Councilmembers may, at their discretion, use technology provided for virtual meetings that are not open to the public. Any public meetings attended by four or more Councilmembers, regardless of format, shall be scheduled by contacting the City Clerk's Office.

3.8 Mail Deliveries

Members of the City Council receive a large volume of mail and other materials, primarily delivered to mailboxes at City Hall. Individual mailboxes are maintained for each Councilmember by City Hall staff. Mail received by Councilmembers is stamped with the date received and opened by the City Clerk or their designee, and copies are made where appropriate. Councilmembers are encouraged to check mailboxes often.

Chapter 4. Financial Matters

4.1 Compensation for the Council and Mayor

The Duvall Municipal Code provides for the payment of salaries to members of the City Council and the Mayor. A seated City Council may not increase its own compensation. Councils may only pass an ordinance to adjust the compensation of an incoming City Councilmember.

The Council may modify the Mayor's salary at any time.

4.2 Council Legislative Budget

The budget includes appropriations under the legislative department for expenses necessary for members to conduct official City business. Funding may be provided for membership in professional organizations, attendance at meetings, conferences, or educational seminars, and the purchase of publications and office supplies, based on the availability of funds and the priorities set by the Council.

The Mayor Pro Tempore shall submit a budget request during the appropriations period and seek the full Council's consensus on a Council Legislative Budget during the budget process.

Chapter 5. Code of Conduct – City Council, Commissions, and Boards

5.1 Policy

The Code of Conduct describes how Duvall officials, both elected and appointed, treat one another and work together for the community's common good. Conducting the City's business in an atmosphere of respect and civility is the underlying theme in this code. City officials are responsible for holding themselves and each other accountable for displaying actions and behaviors that consistently model the ideals expressed in the code.

A. *Purpose.* The Duvall City Council has adopted a Code of Conduct for the Mayor and members of the City Council and the City's boards and commissions to promote public confidence in the integrity of local government and its fair operation. This Code of Conduct will serve as the basis for education and training for City officials, both elected and appointed, to ensure that the highest ethical standards and best practices are upheld.

B. *Intent.* The residents and businesses of Duvall are entitled to have a fair, ethical, and accountable local government that has earned the public's full confidence. In keeping with the City of Duvall's commitment to excellence, the effective functioning of democratic government requires that:

1. Public officials, both elected and appointed, comply with the laws and policies affecting the operations of government.
2. Public officials should be independent, impartial, and fair in their judgment and actions.
3. Public office is used for the public good, not for personal gain.
4. Public deliberations and processes are conducted openly, unless legally confidential, in an atmosphere of respect and civility.

5.2 Definitions

A. "Official" means a member of the City Council, the Mayor, or a member of Council appointed to City boards and commissions and other Council-appointed task groups or committees, including youth members.

B. "Relative" means spouse or domestic partner, child, stepchild, parent, stepparent, parent-in-law, grandparent, grandchild, sibling, aunt, uncle, niece, nephew, son or daughter-in-law, brother or sister-in-law.

C. "Gift" means anything of economic value for which no consideration is given. "Gift" does not include:

1. Items from family members or friends where it is clear beyond a reasonable doubt that the gift was not made as part of any design to gain or maintain influence in the City or with the recipient in connection with City matters.
2. Items related to the outside business of the recipient that are customary and not related to the recipient's performance of official duties.

3. Items exchanged among officials and employees or a social event hosted or sponsored by a City officer or City employee for co-workers.
4. Payments by a governmental or nongovernmental entity of reasonable expenses incurred in connection with a speech, presentation, appearance, or trade mission made in an official capacity. As used in this subsection, “reasonable expenses” are limited to travel, lodging, and subsistence expenses incurred on the day before through the day after the event.
5. Items that an official or employee is authorized by law to accept.
6. Payment of enrollment and course fees and reasonable travel expenses attributable to attending seminars and educational programs sponsored by a bona fide nonprofit governmental or nonprofit professional, educational, trade, or charitable association or institution. As used in this subsection, “reasonable travel expenses” are limited to travel, lodging, and subsistence expenses incurred on the day before through the day after the event.
7. Items returned by the recipient to the donor within thirty days of receipt or donated to a charitable organization within thirty days of receipt.
8. Campaign contributions reported under Chapter [42.17A RCW](#).
9. Discounts available to an individual as a member of an employee group, occupation, or similar broad-based group.
10. Awards, prizes, scholarships, or other items provided in recognition of academic or scientific achievement.

5.3 Prohibited Conduct

A. Conflicts of Interest. (1) No municipal officer may use their position to secure special privileges or exemptions for themselves or others. (2) No municipal officer may, directly or indirectly, give or receive or agree to receive any compensation, gift, reward, or gratuity from a source except the employing municipality, for a matter connected with or related to the officer's services as such an officer, unless otherwise provided for by law. (3) No municipal officer may accept employment or engage in business or professional activity that the officer might reasonably expect would require or induce them by reason of their official position to disclose confidential information acquired by reason of their official position. (4) No municipal officer may disclose confidential information gained by reason of the officer's position, nor may the officer otherwise use such information for their personal gain or benefit.

B. Appearance of Conflict. If it could appear to a reasonable person, knowing the relevant circumstances, that the official's judgment is impaired because of either (1) a personal or business relationship not covered under the foregoing paragraph, or (2) a transaction or activity engaged in by the official, the official shall make a public, written disclosure of the facts giving rise to the appearance of a conflict before participating in the matter.

C. Misuse of Public Position or Resources. Except for infrequent use at little or no cost to the City, officials shall not use public resources that are not available to the public in general, such as City staff time, equipment, supplies, or facilities, for anything other than a City purpose.

D. Representation of Third Parties. Except in the course of official duties, officials shall not appear on behalf of the financial interests of third parties before the bodies on which the Officials serve or in interaction with assigned staff. However, members of the City Council shall not appear on behalf of the financial interests of third parties before the Council or any board, commission, or proceeding of the City, or in interaction with staff.

E. Solicitations of Charitable Contributions. No Official may make direct personal solicitations for charitable contributions from City employees.

F. Gifts and Favors. Officials shall not take any special advantage of services or opportunities for personal gain, by virtue of their public office, which are not available to the public in general. They may not solicit or receive anything of monetary value from any person or entity; provided, that nothing shall prohibit campaign contributions which are solicited or received and reported in accordance with applicable law.

G. Confidential information. Officials shall not disclose or use any confidential information obtained in the course of their official duties for any purpose other than a City purpose. “Confidential Information” means (i) specific information, rather than generalized knowledge, that is not available to a person who files a public records request, and (ii) information made confidential by law.

5.4 Disclosure Statements

All Officials shall timely file disclosure statements as may be required under chapter [42.17A RCW](#).

Candidates for the office of Councilmember shall file a financial disclosure statement with the State Public Disclosure Commission within two weeks of filing a nomination paper. When appointed to fill a vacancy on the Council, the appointee shall file a financial disclosure statement with the Commission, covering the preceding 12-month period, within two weeks of being appointed.

Councilmembers must file a financial disclosure statement with the Commission annually, after January 1 and before April 15, covering the previous calendar year. Councilmembers whose terms expire on December 31 shall file the statement for the year ending on December 31. Statements filed in the above cases will be available for public inspection.

5.5 Ethics Standards

In addition to Section 5.3 of the Code of Conduct, which the Ethics Officer shall administer, officials are also encouraged to comply with the following standards:

A. Compliance with other laws. Officials shall comply with Federal, State, and City laws in the performance of their public duties. These laws include, but are not limited to, the United States and Washington constitutions; laws on conflicts of interest, election campaigns, financial disclosures, and open government processes; and City ordinances and policies. As required by [RCW 41.06.250](#), no Official shall knowingly solicit or encourage,

directly or indirectly, any political contribution from any City employee. Except under limited circumstances described in [RCW 29B.45.010](#), no official may use or authorize the use of the facilities of the City for the purpose of assisting a campaign for the election of any person to any office, or for the promotion of or opposition to any ballot proposition in a manner not available to the general public on the same terms.

B. Personal integrity. The professional and personal conduct of officials must be above reproach and avoid even the appearance of impropriety. Officials shall refrain from abusive conduct, threats of official action, personal accusations, or verbal attacks upon the character or motives of other members of Council, boards and commissions, the Mayor, the staff, or the public. Officials shall maintain truthfulness and honesty and not compromise themselves for advancement, honor, or personal gain. Additionally, officials shall not directly or indirectly induce, encourage, or aid anyone in violating the Code of Conduct, and it is incumbent upon officials to make a good-faith effort to address apparent violations of this Code of Conduct.

C. Working for the Common Good. Recognizing that stewardship of the public interest must be their primary concern, Officials will work for the common good of the people of Duvall and not for any private or personal interest, and they will ensure fair and equal treatment of all persons, claims, and transactions coming before the City Council, boards, and commissions. Implicit in the Code of Conduct is recognition of the inherent dignity of individual members, staff, and the public. The Code will ensure an atmosphere where everyone is free to express their ideas and work to their full potential.

Officials need to be respectful of staff time and mindful that making special requests of staff without Council consensus to do so, even when the response does not benefit the official personally, puts staff in an awkward position, as staff may feel pressured to work on special requests in place of their regular work or on projects that the Mayor or City Council has requested as a whole.

D. Respect for Process. Officials shall perform their duties in accordance with the processes and rules of order established by the City Council and by boards and commissions governing the deliberation of public policy issues, the meaningful involvement of the public, and the implementation of City Council policy decisions by City staff.

E. Commitment to Transparency. Transparency, openness, and accountability are fundamental values of the City – and are also required by the laws of the state of Washington. The public has a right to inspect and copy public records unless exempt from disclosure by law. All materials relating to the conduct of City government that are prepared, possessed, used, or retained by any official, including email and other electronic records, are subject to requirements for retention, protection, and disclosure. Officials may assume that all copies of materials received from City staff have already been archived and do not need to be retained. Officials shall not discard, damage, or destroy the original copy of any public record unless directed by the City Public Records Officer (the City Clerk), who is responsible for ensuring that the City complies with the record retention schedules established under chapter [40.14 RCW](#). Officials shall promptly provide any records requested by the Public Records Officer in response to a disclosure request under the Public Records Act, chapter [42.56 RCW](#). It is the responsibility of the Public Records Officer, together with the City Attorney, to decide which records meet the definition of “public record” and whether or not they are exempt from disclosure; Officials must not take it upon themselves to decide whether a record meets the definition of a public record, that a record is exempt from disclosure, or to conceal a record otherwise.

F. *Conduct of Public Meetings.* Officials shall prepare themselves for public issues; listen courteously and attentively to all public discussions before the body; and focus on the business at hand. They shall refrain from interrupting other speakers; making personal comments not germane to the business of the body; or otherwise interfering with the orderly conduct of meetings. Officials do not revisit past actions or call into question others' motives. Officials wait to be recognized by the Chair or presiding officer before beginning to speak, and obey the orders of the Chair, except as provided under Robert's Rules of Order.

G. *Decisions Based on Merit.* Officials shall base their decisions on the merits and substance of the matter at hand, rather than on unrelated considerations.

H. *Ex parte Communications.* In quasi-judicial matters governed by chapter [42.36 RCW](#), Officials shall publicly disclose substantive information that is relevant to a matter under consideration by the Council or boards and commissions, which they may have received from sources outside of the public decision-making process.

I. *Nepotism.* The City Council will not appoint relatives of City Council members to boards or commissions or other appointed positions.

J. *Advocacy.* When acting in an official capacity as a City official representing the City, Officials shall represent the official policies or positions of the City Council, Board, or Commission to the best of their ability when the City Council, Board, or Commission has taken a position or given an instruction. When presenting their individual opinions and positions, members shall explicitly state they do not represent their body or the City of Duvall, nor will they allow the inference that they do. Officials have the right to endorse candidates for all Council seats or other elected offices. It is inappropriate to make or display endorsements during Council meetings, board/commission meetings, or other official City meetings. However, this does not preclude officials from participating in ceremonial occasions, community events, or other civic group-sponsored events.

K. *Policy Role of Officials.* Officials shall respect and adhere to the mayor-council structure of the City of Duvall government as outlined by chapter [35A.12 RCW](#). In this structure, the City Council determines the City's policies with advice, information, and analysis from the public, boards and commissions, and City staff.

Chapter 6. City Council Meetings

6.1 Purpose of Meetings

The City Council's collective policy and law-making powers are implemented at Council meetings. It is here that the Council conducts its business. The opportunity for citizens to be heard, the availability of local officials to the citizenry, and the openness of Council meetings all lend themselves to the essentially democratic nature of local government. Time will be allocated for public comments at regularly scheduled Council Meetings and Hearings. No public participation is allowed during any Council Committee or Retreat unless permitted by the consent of a majority of the Councilmembers present. No formal voting or final action shall be taken on any matter at any Committee of the Whole (See Chapter 7), committee meeting, or retreat/workshop; however, it is customary to allow the Council to reach consensus during such meetings. Voting or final action shall occur only during Council Meetings.

6.2 Rules Governing the Conduct of Meetings

The order of procedure contained in this Chapter shall govern deliberations and meetings of the Council of the City of Duvall, Washington. Robert's Rules of Order, Newly Revised, Latest Edition, shall govern the deliberations of the City Council except when in conflict with any of the rules outlined in this chapter.

The City Clerk, or their designee, shall serve as Parliamentarian for the City Council and, as such, shall decide all questions of parliamentary procedure following the parliamentary rules contained in Robert's Rules of Order. Before deciding any question of parliamentary procedure, the City Clerk may request advice from the City Attorney. In cases where serious errors in the procedure are being used or contemplated, the City Attorney should give advice even when it has not been requested.

6.3 Regular Meetings

Regular meetings of the City Council are to be held at a regularly scheduled time and location set by the City Council. Meetings shall adjourn by 9:30 p.m. unless superseded by a Council motion and a majority vote of Councilmembers present. Meetings are preceded by the Committee of the Whole beginning at 5:30 p.m. or as otherwise noticed. If a regular meeting falls on a legal holiday, it must be held on the next business day unless the Council votes to reschedule or cancel it.

6.4 Public Notice

- A. *Notices* - Notice of Council meetings shall be given in accordance with chapter [42.30 RCW](#), the Open Public Meetings Act. Public notice is not required for events at which no action, as defined by law, may be taken, e.g., training, social, and purely ceremonial events, such as ribbon-cuttings.

Except where a specific means of informing the public of a public hearing is otherwise provided by law or ordinance, notice of upcoming public hearings before the City Council or the City's Boards and Commissions shall be given by one publication of a notice containing the time, place, date, subject, and body before whom the hearing is to be held, on the City Website and in the City's official newspaper at least ten (10) days before the date set for the hearing. The City Clerk is responsible for ensuring proper publication of notices.

- B. *Preliminary Agenda of Council Meeting* - The public shall be notified of the preliminary agenda for the forthcoming regular City Council meeting by posting a copy in the public notice window at City Hall and a link to the agenda on the City Website and City Social Media on the Thursday before the scheduled Council meeting.

Agendas must also be posted at the meeting location. When agenda packets are complete, all scannable documents must be posted online and available in hard copy format upon request to the City Clerk. The City Clerk is responsible for publishing and posting agendas.

6.5 Quorum

At all meetings of the Council, a majority of the Councilmembers (four) shall constitute a quorum for the transaction of business. Still, a lesser number may adjourn from time to time to secure the attendance of absent members.

6.6 Development of the Council Agenda for Regular Meetings

A written agenda and informational material to be considered by the City Council shall be prepared for each regular meeting under the provisions of this section:

- A. An Agenda Meeting will be scheduled by the City Administrator with the Mayor Pro Tempore and coordinated with the office of the Mayor to review agenda items preceding regularly scheduled Council meetings.
- B. A preliminary agenda for the upcoming meeting and an updated agenda calendar of scheduled topics for future meetings will be circulated via e-mail to Councilmembers the week preceding the Council meeting to allow time for information or requests to be submitted to the City Administrator, Mayor, or Mayor Pro Tempore.
- C. Councilmembers are encouraged to introduce agenda topics and discussion items. Items of consideration for future Council or Committee of the Whole agendas may either be introduced by an individual Councilmember request made to the City Administrator under Section 5.6 below and copied to the Mayor and Mayor Pro Tempore or be introduced by Councilmembers during a regularly scheduled Council or Committee of the Whole meeting. The Council body approves the final agenda for regular meetings, so it must approve any agenda items.
- D. Individually requested agenda discussion items from Councilmembers made to the City Administrator shall include a written summary of items for inclusion in the proposed Council agenda by the Monday of the week preceding the scheduled Council meeting. The City Administrator may approve or deny the request for the next Council agenda, schedule the item for a future agenda, request clarification from the party, or direct the request to a specified Council committee.

The determination of whether an individually requested item shall be so directed is within the City Administrator's discretion, and a statement of the decision shall be provided promptly to inform the requester of the action. The City Administrator will report at each Council meeting any requests referred by the Council

and the action of an item, either to be placed on a Council agenda, referred to a committee, or denied. The Council body maintains final authority concerning business to be transacted.

E. All decisions as to the final form of the preliminary Council agenda are determined by the City Administrator and are subject to the adoption of the Final Agenda at the regularly scheduled Council Meeting. Any items or materials required for the Council agenda shall be given to the City Clerk by 4:00 p.m., Tuesday, the week preceding the Council meeting, for inclusion in the Council packet. Individual Councilmembers cannot alter the agenda before a Council meeting. Efforts should be made to avoid adding items to the agenda at a Council meeting for immediate final action.

6.7 Changes to the Agenda Packet after Distribution

Any changes to the Council agenda packet after it has been published, or modifications to the content of the business items after it has been distributed, are highly discouraged. However, if there is a pertinent addition, correction, revision, or change to the agenda or the packet's content, Councilmembers and staff should be notified as soon as possible by the City Clerk. Any revised documents will also be emailed to Councilmembers and staff if possible. Any substantial changes to the agenda will still need to be addressed at the Council meeting under the "Additions and Corrections to the Agenda" portion of the City Council meeting.

6.8 Process for Proposing a New Agenda Bill

The City Council intends to ensure transparency and opportunity for public feedback on its actions. As such, the following procedures are to be utilized by City staff and Councilmembers when seeking legislative body approval of formal action items:

A. *New Business Process.* The City Council may wish to bring forward items for discussion and action outside of the established annual work plan. There are multiple ways that an additional work plan item may be brought forward, including:

1. Coordination with the Mayor, City Administrator, and Mayor Pro Tempore
2. Direction provided by a majority of the Council at a meeting by:
 - a. Amending a meeting agenda
 - b. Providing direction under consideration of a current work plan item
 - c. Requesting that the City Council consider additional work plan items under New Business using the New Business Request Form

B. *New Business Request Form.* To request a new agenda item using the New Business Request Form, the requesting Councilmember(s) must submit a New Business Request Form provided by the City Clerk's Office. The form will include basic information about the proposal and guiding questions for the Councilmember(s) to address. The New Business Request Form must be submitted to the City Clerk's Office one full week before the regular Council meeting at which it is to be presented. If the form is submitted after the deadline, the request will be considered at the next regular Council meeting unless the item is unplanned and time-sensitive.

Step 1: Initial Introduction. When a New Business Request is submitted, the proposal will be added as an agenda item under New Business at a regular Council meeting. This first step is considered the Introduction phase, during which the advocating Councilmember(s) may provide a verbal presentation and/or materials (including PowerPoint, handouts, etc.). The City Council will decide whether to pursue the proposal after the presentation. Approval by a majority of the City Council is required to continue consideration of the item and direct the Administration to gather additional information. Upon approval, this item will be scheduled at a future Council meeting under New Business for a preliminary staff response as outlined in section D. If majority approval is not received, the item will not proceed. Staff will not invest effort in further developing the item.

Step 2: Returning Proposal. New Business Request proposals that have received majority approval from the Council will return under New Business at a regular Council meeting. A staff memo with a preliminary response will accompany the item. At that time, the Council will determine if there remains majority support to add the item to its work plan for an individual committee or the Committee of the Whole. This second step may be waived for time-sensitive items if approved by a majority of the City Council at the meeting at which the item is introduced. If an item is deemed time-sensitive and the Council waives staff response, the Council shall coordinate with the City Administrator to discuss the time and staff resources needed to devote to the New Business. If the return under New Business is waived, the item will proceed directly from Introduction to being scheduled at a City Council meeting or a Committee of the Whole meeting.

Step 3: After Returning as New Business. The Council will decide by voice consensus whether to place the item on the agenda of the next meeting under Unfinished Business for continued discussion or decision on the Consent Agenda, or to leave it off future agendas. Council is not under an obligation to vote on every item presented unless compelled by law.

6.9 Recording of Meetings | Minutes

A. Recordings - The City Clerk, or designee, shall make and keep audio and/or video recordings of all regular meetings of the Duvall City Council, including Committees and Committee of the Whole, except those meetings or portions of meetings conducted in Executive Session. Recordings and related records of all City Council and associated Committee and Committee of the Whole meetings, except as referenced above, shall be retained by the City under the Washington State Records Retention Schedule.

Any party other than the City that desires to conduct a visual or audio recording of a meeting of the City Council shall be permitted to do so as long as the methods, placement, or locations of recording devices are not disruptive to the purpose of the meeting. The designated location for audio and video recording shall be from the audience seating location for Council and Committee of the Whole meetings, and from the back or side of any meeting room for Committee meetings.

B. Minutes - The City Clerk, or designee, shall keep correct Action minutes of all proceedings in which action is taken. Minutes should include a record of the Councilmember who made and seconded motions to approve any ordinance, bill, or resolution, and the results of said vote (ayes/nays) shall be entered in the minutes. Copies of the minutes shall be made available to the members of the Council and the Public as part of the Council meeting packet before their next regular meeting.

6.10 Order of Business

A. *Call to Order*

The Mayor, or in the Mayor's absence, the Mayor Pro Tempore, presides over all meetings of the City Council and, after determining that a quorum is present, calls the meeting to order. In the absence of the Mayor and Mayor Pro Tempore, the City Clerk shall call the Council to order, whereupon the members of the Council present shall elect a temporary Mayor Pro Tempore. Following the call to order, those in attendance are asked to join the Council in reciting the Pledge of Allegiance.

B. *Roll Call*

The Mayor, City Clerk, or designee takes the roll, and each Councilmember announces their presence. The City Clerk records the attendance or absence of any Councilmember.

C. *Additions and Corrections to the Agenda*

This is when Councilmembers may move to withdraw, add, or adjust the agenda items in sequence. Most of those present may vote to consider items in a different order.

D. *Adoption of the Council Agenda*

This is the time when Councilmembers adopt the final agenda. Adoption of the Council Agenda may be by unanimous consent.

E. *Items from the Audience*

This is the time when resident Requests and Public Comments are taken.¹

F. *Consent Agenda*

Those business matters that require Council action and are considered routine and non-controversial are placed on the consent agenda.

No discussion shall occur regarding any item on the consent agenda except to ask questions for simple clarification. Unless a member of the Council requests a reading of the minutes of a Council meeting, such minutes may be approved without reading if the City Clerk has previously furnished each member with a copy thereof.

Before approving the items on the consent agenda, a Councilmember may request to withdraw (or pull) any item and take action separately. After the approved amended consent agenda is adopted, the Council will consider each withdrawn item during the meeting.

¹ On January 2, 2024, the Duvall City Council voted to approve a change to this item, in which Council, and all Commissions and Boards thereof, would only accept oral comments from those members of the public attending the meeting in person. Any persons attending virtually may not participate during the public comments section of Council meetings, or any meetings of any Commissions or Boards thereof.

The individual items on the consent agenda shall be approved, adopted, or enacted by one motion of the Council. Adoption of the consent agenda may also be by unanimous consent.

Examples of such items include:

1. Approval of Council minutes
2. Acceptance of advisory board and commission minutes
3. Approval of vouchers
4. Final approval of leases and agreements
5. Final acceptance of grants, deeds, or easements.
6. Setting dates for public hearings/meetings
7. Acknowledging receipt of claims against the City

G. Scheduled Items

1. Mayor's Report: This is the time the Mayor is allocated to speak to the Council regarding items relevant to the City.
2. City Administrator's Update: This is the time for the City Administrator and staff to present informational updates to Council regarding current projects, work plan items, and other items of relevance that do not require Council action or direction.
3. Council Reports: This is when Councilmembers may speak regarding items relevant to the City. Chairpersons or other representatives of various municipal committees or agencies may be asked to report to the Council concerning the activities for which they are responsible or involved. Councilmembers shall avoid duplicate reporting and make best efforts to be concise.

For discussion to occur on any of these items, they must be listed on the agenda with sufficient specificity, and brief written reports must be submitted for inclusion in the agenda packet before the meeting, if available. Otherwise, if additional discussion or consensus is required, the topic may be brought up under the Good of the Order.

H. Special Presentations

During this meeting segment, the City Council may receive or give awards or special recognition to or from various agencies, committees, or individuals. This can also include other presentations of interest to the Council. The Mayor and Council may also take the opportunity to acknowledge outstanding achievements or present awards to employees, groups, or other individuals.

I. Public Hearings (see Chapter 10)

J. New Business

Items of new business shall be described on the agenda as “Presentation,” “Introduction,” “Discussion,” or “Decision” if previously introduced in the Committee of the Whole. Presentations with informative content relevant to the City may also be provided to the Council during this time.

K. Unfinished Business

Items of unfinished business shall be described on the agenda as “Update,” “Discussion,” and/or “Decision.”

L. Good of the Order

The purpose of the Good of the Order is to allow the Mayor and City Council the opportunity to: offer comments/feedback, discuss process/procedure, make announcements, propose suggestions for the agenda, and handle disciplinary matters.

M. Executive Session

Executive Sessions are not open to the public. They are permitted under the Open Public Meetings Act (OPMA), chapter 42.30 RCW, and refer to situations in which a governing body may meet privately during a regular or special meeting to discuss certain topics. The following is a non-exhaustive list of the topics that can be addressed in the executive session.

- | | |
|--|--|
| 1. Matters affecting national security: | RCW 42.30.110(1)(a) |
| 2. Potential Property Acquisition: | RCW 42.30.110(1)(b) |
| 3. Potential Property Sale: | RCW 42.30.110(1)(c) |
| 4. Publicly bid Contract negotiations: | RCW 42.30.110(1)(d) |
| 5. Personnel:
<i>(State the reason, i.e., to evaluate complaints against a public officer or employee)</i> | RCW 42.30.110(1)(f) |
| 6. Personnel:
<i>(To evaluate an applicant's qualifications for public employment or to review the performance of a public employee.)</i> | RCW 42.30.110(1)(g) |
| 7. Appointment to Elected Office | RCW 42.30.110(1)(h) |
| 8. Litigation | RCW 42.30.110(1)(i)(A) |
| 9. Potential Litigation | RCW 42.30.110(1)(i)(B) |
| 10. Labor Negotiations | RCW 42.30.140(4)(a) |

N. Adjournment

6.11 Public Comment

The Council believes that the following procedure for “limited” public comment from City residents, non-resident property owners, community organizations, and local business owners during regular Council meetings will best meet the needs of the Council and the public:

- A. During the time for "Items from the Audience," speakers may not comment on matters that are scheduled for a public hearing or quasi-judicial matters, as they will be taken during the hearing. The Council will receive comments on other issues within its jurisdiction, whether or not the matter is on the agenda for the same meeting.
- B. Speakers are not allowed under state law to offer public comment for the purpose of assisting a campaign for the election of any person to any office. In addition, speakers are not allowed to offer public comment in support of or in opposition to any certified ballot measure unless the Council has provided advance notice that it is accepting comments from both sides of the measure.
- C. During the time for "Items from the Audience," individuals will be limited to three minutes, while representatives of organizations may address the Council for up to five minutes. Organizations are limited to having one representative speak on behalf of the group. Persons who require special accommodations to address the Council shall be allowed more time, subject to reasonable time limitations at the Presiding Officer's discretion.
 - 1. Residents are encouraged to sign up to speak under Public Comments, and the Mayor should recognize speakers in the order of sign-up. By providing contact information during sign-up, Staff can follow up outside of the meeting and provide additional information.
 - 2. Comments should be made to the Council as a whole, and speakers are encouraged to follow the Council's own principles of conduct related to professionalism, respect, and civility in working for the greater good of Duvall.
 - 3. The Mayor has the authority to limit the number of speakers or otherwise exercise such control over this portion of the meeting to ensure that it does not interfere with or impede the Council's ability to conduct its business.
 - 4. Residents with complaints, questions, or requests should be referred to the City Administrator or the appropriate Department Director with the background information for action.
 - 5. The Mayor should announce that no Council action will be taken on the resident's request or comment at the meeting at which it is made unless it is deemed by a majority vote that an emergency exists.
 - 6. No resident participation is allowed during any study session (e.g., the Committee of the Whole or Retreat) unless permitted by the consent of a majority of the Council present.

6.12 Duties of the Presiding Officer

It shall be the duty of the presiding officer of the Council to:

- A. Call the meeting to order.
- B. Keep the meeting to its order of business.
- C. Announce the agenda item and determine if the Council wishes to receive a staff report.
- D. Formally recognize a Councilmember to make a motion or to speak to a motion. Require a second to each motion for those motions which must be seconded.
- E. Handle discussion in an orderly way.
- F. Give every Councilmember who wishes an opportunity to speak.
- G. Permit audience participation at appropriate times.
- H. Keep all speakers to the rules and to the question.
- I. Give pro and con speakers equal opportunity to speak.
- J. Repeat motions, put motions to a vote, and announce the outcome.
- K. Suggest but do not make motions for adjournment.
- L. Maintain order and decorum.
- M. Provide direction to remove an individual or individuals from a Council meeting based on speech or conduct that has disrupted, disturbed, or impeded the orderly conduct of the meeting.

The Chief of Police (or designee) acts as the sergeant-at-arms. It shall be the duty of the sergeant-at-arms to carry out all instructions of the presiding officer to preserve the peace and maintain order and decorum at Council meetings.

If a disruption or interruption has rendered the orderly conduct of a meeting unfeasible and order cannot be restored through a recess or by the removal of the individual or individuals who interrupted the meeting, the Presiding Officer, upon a majority vote of the Councilmembers present, may order the meeting room cleared and continue the session or may adjourn the meeting and reconvene in another location in accordance with the provisions of the Open Public Meetings Act. This subsection will be followed and enforced on a content-neutral basis.

- N. Decide on all questions of order with the “right of appeal” to the Council by any Councilmember.

6.13 General Meeting Decorum | Rules for Discussion and Debate

The City Council recognizes the importance of approaching the public’s business with personal respect, emphasizing policy considerations and avoiding personalizing comments.

- A. Maintain a level of formality by addressing members of the Council as Councilmember, followed by last names, such as “Councilmember Jones,” and staff by Mr./Ms., followed by staff member’s last name, or by their title, such as “Police Chief”, “Director Smith”, “Mr. Clerk”, etc.

- B. Councilmembers, like members of the staff and the public, are expected to either turn off their cell phones or deactivate the ringer function during the Council meeting. If a Councilmember needs to take a telephone call or engage in regular text messaging, e-mail, or other electronic communications, they are expected to engage in this activity outside Council chambers. During Council committees and meetings, Councilmembers are prohibited from communicating with each other, staff, and audience members via electronic devices.
- C. Councilmembers should address all remarks through the Chair. Upon recognition by the Chair, Councilmembers should confine themselves to the motion under debate. Councilmembers should not be interrupted while speaking unless it is to call them to order. No member shall speak a second time on the same motion before the opportunity has been given to every member to speak on the same motion. If a Councilmember has more than one question, they should limit themselves to one question, with one follow-up to clarify the response to their first question, per turn, so that others can weigh in on the discussion. Additional questions may be introduced once each Councilmember can speak on the first question.
- D. Questions and comments made during Council debate should be brief, relevant, and Non-Duplicative that advance the motion or item under discussion toward a decision. Limit questions after motions meant merely to support the position. Avoid side conversations, disruptions, interruptions, or delaying efforts that interfere with the orderly conduct of regular business.
- E. Councilmember deliberations are intended to provide an opportunity for each Councilmember to state their position, explain their position, and/or offer factual information to inform the Council on a specific matter. Rebuttals, argumentative statements, or statements implying that disagreement is wrong or inappropriate violate these procedures. Following the opportunity to speak on a particular matter twice, a vote shall immediately be taken to (1) vote on the motion, (2) vote to table the motion, or (3) vote to extend discussion for additional opportunities to speak.
- F. If staff or contracted services have pertinent information to the discussion, they should notify the Chair that they have a point of information.
- G. On the occasion that the Mayor wants to participate in a debate, rather than just a recommendation or point of information, they may temporarily assign the Chair to the Mayor Pro Tempore, or on the occasion that the Mayor Pro Tempore is in the debate, the Council may vote to assign the temporary Chair to another Councilmember. Turns in discussion should be limited to two per member, including the Mayor, and then the Council should consider calling the question or deferring back to the Committee of the Whole.
- H. Motions shall be reduced to writing when required by the presiding officer of the Council or any Councilmember. All resolutions and ordinances shall be in writing. The substance of Councilmember proposed amendments to resolutions and ordinances should be communicated to the City Administrator whenever possible in advance of the meeting so that City staff may reduce such amendments to writing for distribution by hard copy and email.

6.14 Voting

The votes during all Council meetings shall be conducted as follows:

- A. Each Councilmember shall vote on all questions put to the Council unless a conflict of interest ([RCW Chapter 42.23](#)) or appearance of fairness ([RCW Chapter 42.36](#)) question precludes a Councilmember's participation in an issue or question. Any Councilmember who abstains from voting without one of the above reasons must state their reason for abstaining. Any Councilmember who remains silent during a voice vote shall be deemed to have cast his or her vote with the majority on any issue so voted upon. Councilmembers attending remotely must unmute for a vote and clearly articulate their vote so that it can be heard and recorded by the City Clerk.
- B. The Mayor or Council may request roll call votes.
- C. In case of a tie vote on any motion, the motion shall be considered failed.
- D. The Mayor shall have a vote only in the case of a tie in the votes of the Councilmembers concerning matters other than the passage of any ordinance, grant, or revocation of franchise or license, or any resolution for the payment of money ([RCW 35A.12.100](#)).

6.15 Suspension of Rules

Suspension of Rules. The rules of the Council may be altered, amended, or temporarily suspended by a vote of two-thirds of the members present; provided that at least four affirmative votes be cast.

6.16 Attendance, Remote Participation, and Absences

Attendance at Council Meetings. Councilmembers may attend Council meetings in person or virtually.

- A. *Remote Participation* - Councilmembers are generally expected to attend Council meetings in person, absent emergent or other extenuating circumstances. However, the Council also intends that Councilmembers retain the flexibility to participate in Council meetings remotely from time to time, for reasons including, but not limited to, illness or injury, travel, or familial care by utilizing technologies such as video conferencing that allow interactive engagement with other Councilmembers and interested members of the community.

The Councilmembers should notify the City Clerk of their intent to participate remotely so the City Clerk can anticipate remote attendance. Remote attendance will be noted in the minutes and will not constitute an absence from that Council meeting. For all other purposes under these policies and procedures, including voting, remote attendance by a Councilmember at a Council meeting shall be considered equivalent to physical presence.

The Council has a strong preference for video and sound communication links that allow Councilmembers participating remotely to see and be seen and to hear and be heard. However, to accommodate different needs (e.g., those related to sight or hearing), the Council intends to allow flexible approaches to meeting them. In any event, the ability to communicate effectively in real time is essential.

B. Absences - The City Clerk shall keep a record of each Councilmember's attendance. Councilmembers should contact the City Clerk in advance, with a copy sent to the City Administrator, and copy the Mayor Pro Tempore, should they anticipate being absent from any scheduled meeting.

1. If a Councilmember is absent following roll call, the Mayor shall inform the Council of the member's absence, stating the reason for such absence if provided.
2. The City Clerk will note any absent Councilmembers in the minutes of each Council meeting.
3. Absences may be excused for good cause by a motion, second, and majority vote of Councilmembers.

Examples of "good cause" include, but are not limited to, a Councilmember's serious illness, the serious illness or death of a Councilmember's family or friend, or a commitment relating to City business, which would preclude the Councilmember from participating in the meeting.

C. Unexcused Absences. As provided in [RCW 35A.12.060](#), a Councilmember shall forfeit his or her office immediately by failing to attend three consecutive regular meetings of the Council without being excused by the Council.

6.17 Special Meetings and Emergencies

Special meetings may be called by the Mayor or at the request of three Councilmembers in writing to the City Clerk. The City Clerk shall prepare an agenda, distribute it to the Council and any media outlets that have expressed interest in receiving notice, and post the agenda in the same manner as for regular meetings at least 24 hours before the time of the special meeting ([RCW 42.30.080](#)). The notice shall specify the time and place of the special meeting and the business to be transacted. Final action, including motions or unanimous consent decisions, may be taken only on items listed on the posted agenda.

The notices provided in this section may be dispensed with in the event a special meeting is called to deal with an emergency involving injury or damage to persons or property, or the likelihood of such injury or damage, when the time requirements of such notice would make notice impractical and increase the possibility of such injury or damage.

Public comment may be invited during special meetings; if so, time for public comment will be included on the special meeting agenda. Public comment is appropriate on any matter not listed on the agenda for a public hearing.

6.18 Proclamations

The Mayor and/or Council issues proclamations as ceremonial commemorating an event or issue. Proclamations are not statements of policy and do not require approval or action. Proclamations are how the City can make special recognition of an individual, event, or issue.

6.19 Inclusive Access | Reasonable Accommodation

For alternate formats, interpreters, or reasonable modification requests, please call at least 48 hours in advance at 425-788-1185 (voice) or contact the City Clerk's Office at cityclerk@duvallwa.gov.

Chapter 7. Study Sessions, Retreats, and Training

7.1 Study Sessions | Committee of the Whole (COW)

- A. The Council shall meet as a Committee of the Whole preceding the regular City Council meetings. The Committee of the Whole will meet at the location of the regular City Council meeting unless otherwise publicly noticed.
- B. Meetings of the Committee of the Whole shall be held for the primary purpose of considering current or upcoming items of City Council business. The Committee of the Whole shall have no power to take any official action other than to refer matters to a committee or a regular Council meeting for a decision.
- C. Committee of the Whole Agenda Process:
 - 1. An Agenda Meeting will be scheduled by the City Administrator with the Mayor Pro Tempore and coordinated with the office of the Mayor to review agenda items preceding the regularly scheduled Committee of the Whole meetings. The Agenda will specify the item to be considered. The City Clerk will soon maintain a running list of items for the Council to consider so that the Mayor Pro Tempore can set the agenda. While agenda creation is a collaborative process among the Mayor Pro Tempore, City Administrator, and the Mayor, the Mayor Pro Tempore ultimately has final approval.
 - 2. The draft agenda for the Committee of the Whole will be emailed to each Councilmember the week preceding the meeting to allow time for information or requests to be submitted to the City Administrator and Mayor Pro Tempore.
 - 3. Requests by Councilmembers to have items added to a future Committee of the Whole agenda will be submitted to the City Administrator and Mayor Pro Tempore. The Mayor Pro Tempore will decide which upcoming Committee of the Whole Meeting the requested items will be added to.
 - 4. Any items or materials required of Council for the Committee of the Whole Agenda shall be given to the City Clerk by 4:00 p.m., Tuesday, the week preceding the meeting, for inclusion in the packet. Councilmembers cannot remove items from the agenda before a meeting. All parties should avoid adding items to the agenda at a Committee of the Whole meeting, but may bring up items for consideration at a future Committee of the Whole meeting during the Good of the Order.
 - 5. Committee of the Whole Agenda packets will be distributed with the Regular City Council Agenda packet and made available on Thursday afternoon the week before the meeting. Councilmembers may submit comments regarding packet materials to the Mayor Pro Tempore and City Administrator. The process/timeline for submitting comments/questions regarding Committee of the Whole Agenda packets is the same process as outlined for the Regular Meeting Agenda in Section 3.5 Information Requests, specifically "Research on an Upcoming Agenda Topic."
 - 6. Ordinarily, items may not be referred to the regular Council meeting for decision on the same day as the Committee of the Whole Meeting in which the item was discussed unless a majority of the Councilmembers present agree that there are extraordinary or urgent circumstances for doing so, or that it is in the best interest of the City.

7.2 Council Retreats

Council retreats will be held twice each calendar year:

A. *First Quarter Yearly Retreat*

In collaboration with the City Administrator, the Mayor Pro Tempore will poll the Council to create an agenda for the First Quarter Yearly Retreat. The Council retreat will ideally be scheduled during January or February of each year for the following purposes: to set the Council committees; schedule workshops for review of Council Procedures, Robert's Rules of Order, Emergency Management Protocols, WAIC, and City Attorney Presentation; review goals and implementation of those goals; set out Council representation on regional bodies; and also other items as determined to be necessary for the good of the Council. Each Councilmember and the Council committees and regional bodies they serve on will be posted and updated on the City's Webpage. Every effort will be made to share this information with citizens.

B. *Mid-Year Retreat*

At mid-year, a retreat will be held to follow up on and evaluate the status of the goals set during the First Quarter Retreat. During Biennial Budget years, this may include preliminary discussions of budget priorities. The Mayor Pro Tempore can poll the Council on items of importance or on matters that require more than a Committee of the Whole to discuss in depth.

7.3 Required Training for Local Officials

The Open Government Trainings Act mandates that public officials and agency records officers receive training on the Public Records Act ([RCW 42.56](#)) and Open Public Meetings Act ([RCW 42.30](#)). These are Washington's "sunshine laws."

This training is essential for ensuring compliance with Washington's open government laws and is a key component in establishing a "culture of compliance" within an agency. The Act also emphasizes the importance of training to reduce litigation costs and avoid penalties for violations of these laws.

The Act requires training for every local elected official and every member of a governing body subject to the Open Public Meetings Act (OPMA), with refresher courses required every four years.

Chapter 8. Council Communications

8.1 General Communications

A fundamental role of a Councilmember is to facilitate communication:

- A. Communication with the public to assess community opinions and needs and to share the vision and goals of the City with constituents.
- B. Communication as a legislative body with staff to provide policy direction and understand the implications of various policy alternatives.
- C. Communication with the Mayor and Council according to Robert's Rules of Order to maintain order and decorum during public meetings.

Because the Council acts as a body (based on the will of the majority rather than individuals), general guidelines must be understood when speaking for the Council. Equally important, when members express personal views rather than the Council's, the public should be so advised.

8.2 Council Correspondence with the Public

All letters, memoranda, and interactive computer communication involving City Councilmembers and members of advisory boards and commissions, the subject of which relates to government conduct or the performance of any governmental function, with few exceptions as stated by the Public Records Act, are **public records**. Letters received by or from Councilmembers are public information subject to the Public Records Act ([RCW 42.56](#)). According to the Washington State Records Retention Schedule, Councilmembers shall keep copies of such letters, memoranda, and interactive computer communication.

E-mail messages to city-owned, personal, and business addresses discussing city-related business are also considered public information subject to the Public Records Act ([RCW 42.56](#)) and should be treated as such. Electronic messages must also adhere to retention schedules and guidelines. If a Councilmember writes a letter as a Councilmember, the Councilmember may use City stationery; however, the letter must clearly state that any opinion expressed is their own unless the Council has taken action on the subject matter of the letter. The Councilmember must sign their name and title.

Councilmembers may occasionally be asked to prepare letters of personal recommendation for students or others seeking employment or appointment. It is appropriate for Councilmembers to utilize City letterhead and their Council titles for such letters.

8.3 Electronic Communications among Councilmembers

Improper electronic communications between elected officials of a governing body may violate the Open Public Meetings Act. If a quorum of Councilmembers discusses City business via e-mail, texts, or social media, it constitutes a meeting and may violate the Open Public Meetings Act. Direct or indirect correspondence between Councilmembers shall be limited to a maximum of three, including the sender and recipients.

Communications intended to be shared among four or more Councilmembers, whether concurrently or serially, must be considered in light of the Open Public Meetings Act. If the intended purpose of the correspondence is to have a discussion that should be held at an open meeting, the electronic discussion should not occur. Further, using e-mail to reach a collective decision by the Council is inappropriate.

Communication of information to the full Council shall be coordinated for dissemination through either the Mayor, City Administrator, City Clerk, or Mayor Pro Tempore, depending on the content.

Informal messages with no retention value and that are transitory in nature, which do not relate to the functional responsibilities of the recipient or sender as a public official, such as meeting notices, reminders, telephone messages, and informal notes, do not constitute public records. The user may delete these messages once their transitory purpose is served.

8.4 Local Ballot Measures

At times, initiatives that affect City Council policy may be placed on the ballot. There are restrictions regarding what actions the City may take on ballot measures. Expressly, State Statutes prohibit the City from using its personnel, equipment, materials, buildings, or other resources to influence election outcomes. [RCW 29B.45.010](#).

If Council desires to support or oppose a ballot proposition, it must ensure that (a) any required notice of the meeting includes the title and number of the ballot proposition, and (b) members of the Council and members of the public are afforded an approximately equal opportunity for the expression of an opposing view. [RCW 29B.45.010](#).

Additionally, the City can prepare informational reports or pamphlets that provide objective, fair presentations of the facts of the ballot measure if creating such materials is part of the City's regular communications.

8.5 Social Media Use

Specific rules and guidance governing the use of social media are outlined in *City of Duvall Administrative Policy and Procedure: City of Duvall Social Media Policy (Policy Number: [Admin 25-01](#))* – Approved by Duvall City Council on 10/7/2025.

Chapter 9. Council Committees

9.1 Establishment and Authority of Committees

While there are no State statutes that specifically address the establishment and operation of Council committees, the authority for committees is recognized in [RCW 35A.12.120](#), which provides, in relevant part: “The Council shall determine its own rules and order of business and may establish rules for the conduct of Council meetings and the maintenance of order.” That language is interpreted in these procedures as granting the City Council the authority to create committees and determine how they will conduct their business.

Council committees are advisory only and do not take any direct action on behalf of the Council. The purpose of committees is to serve as the policy review and discussion arm of the City Council, providing an opportunity to explore the implications of policy alternatives in detail and to report back to the full Council for possible Council action. Council committees are codified under [2.01.070](#) of the Duvall Municipal Code.

9.2 Standing Committees

Note: The Council does not have standing committees, but it may reconstitute them in the future.

- A. *Committee Purpose Statements.* Standing Committees will convene as directed by Council and will meet as necessary. The purpose statement and assignments from the Council shall define the purpose and role of each committee from time to time. The Standing Committees may include the following:
 1. Finance and Administration Committee
 2. Land Use Committee
 3. Public Works Committee
 4. Public Safety Committee
 5. Economic Development Committee
- B. *Membership and Meetings.* During the First Quarter Retreat, the Council will decide if Standing Committees will be convened yearly and who will serve on each Committee. All committee meetings shall be open to the public. Committees do not engage in hearings or decision-making on the City Council’s behalf nor take testimony or public comment.
 1. Standing Committees shall consist of not more than three Councilmembers each.
 2. The attending Councilmembers will determine the Chair of each Committee during the first meeting of each committee, which shall be for a one-year term.
 3. Each Committee shall establish regular meeting dates and times at least once per month. Meeting schedules will be determined during the committee’s first meeting and posted on the City’s website.
 4. If a special meeting is needed or the committee must cancel or change their regularly scheduled meeting, the Chair must notify the City Clerk as soon as possible for proper notice.

5. It is a standard practice that all committee meetings will be formally noticed. Occasionally, scheduling committee meetings on short notice may be necessary. Holding committee meetings off-site may also be necessary to support local and regional coordination efforts. Under these circumstances, it may not be possible to attend the committee meeting in person; however, every effort will be made to view the meeting on the City's website at a minimum.
6. Administrative support to and attendance at committees is provided at the discretion of the Mayor. The Mayor or City Administrator may serve as an *ex officio* committee member.

C. *Committee Work Programs, Agendas, Minutes, and Reports.*

1. Each Committee shall establish its proposed work program for the upcoming year at its first meeting. The proposed work programs will then be distributed to the full Council for discussion and agreement, no later than one month after being provided.
2. The Committee shall meet at such times as necessary to complete the tasks described below. The chairperson will work directly with the staff lead to set agendas and confirm meeting dates, times, and locations. It is anticipated that the Committee will meet at least four times per year.
3. Members of the Committee are expected to attend each committee meeting in person or via teleconference. A majority of the Committee members present or participating through teleconference shall constitute a quorum.
4. The Committee will retain minutes of meetings, recording attendance, discussion topics, and actions at a minimum. The minutes shall serve as the committee reports to the full Council. Committee Chairs may supplement the minutes with additional information during the Committee Reports section of the full Council meeting. Minutes are published following the Committee's approval at the subsequent meeting.
5. Any documentation provided to the committee members during a meeting shall also be supplied to the City Clerk for the official record and shall be provided to the full Council.

9.3 Ad Hoc Committees

Ad hoc committees are disbanded when they complete their assigned task(s). Issues that are not assigned to ad hoc or intermittent committees may be addressed by the Council during study sessions (COW) and at retreats.

- A. The City Council may establish such Ad Hoc Committees at any time to consider particular matters that do not readily fit the Standing Committee or Committee of the Whole structure or require a special approach or emphasis.
- B. Ad Hoc Committees shall consist of not more than three Councilmembers each. The Council will decide which Councilmember(s) will serve on Ad Hoc Committees.
- C. The City Administrator shall assign an appropriate City Department Director or Department staff to be an *ex officio* member of any such Committee(s).

- D. The attending Councilmembers will determine the Chair of each Ad Hoc Committee during the first meeting of each committee.
- E. Ad-hoc committees shall be disbanded by a majority vote of the Council at the request of the committee chair after the committee's prescribed work has been completed.

Chapter 10. Public Hearings

10.1 Introduction

A Public Hearing is a formal opportunity for citizens to give their views to the Council for consideration in its decision-making process. In this case, the speaker should sign their name on the Public Hearing Sign-Up Sheet. During the public testimony period of the Public Hearing, Councilmembers, staff, and the audience will remain silent. After the last person has spoken, the hearing will be closed to the public. The issue will then be opened for Councilmember discussion and decision. The audience may not comment during the Council's deliberations unless the Council requests it and the Mayor has permitted the request. At the Mayor and Council's discretion, the appropriate staff member may address some questions during the Public Hearing testimony period after the hearing has been closed. These Public Hearing Procedures have been established to conduct fair and orderly Public Hearings before the Duvall City Council.

10.2 Standard Agenda for a Public Hearing

- A. Hearing Opened to the public
- B. Staff Report
- C. Proponent/Applicant Comments
- D. Public Comments
- E. Applicant Response to Public Comments (if any)
- F. Staff Responses
- G. Hearing Closed
- H. Council Discussion/Decision

10.3 Public Hearing Procedures

- A. Every person desiring to speak during the Public Comments portion of a Public Hearing before the Duvall City Council must (1) sign in on the form provided for the Public Hearing and is encouraged to (2) complete the appropriate portions of the form thoroughly to allow for follow-up.
- B. When the Hearing is opened, the Chair (typically the Mayor) will announce the opening of the Public Hearing and the subject matter of the Public Hearing. The City Clerk will present the Chair with the sign-in sheet for the Public Hearing.
- C. The Chair will proceed with the Agenda for the Public Hearing.
- D. Each speaker will be called to the podium to speak in the order appearing on the Sign-In form. All speakers must address the audience from the podium, give their name, and, if appropriate, identify their address, any organization or group on whose behalf they are appearing and speaking, and their role or position within that group or organization.

- E. Unless modified by a majority vote of the Council present, the following time limits will apply to each speaker: three (3) minutes for any person speaking on behalf of themselves or in an individual capacity, and five (5) minutes for any person who is designated to speak on behalf of a group or organization. A speaker will only be permitted once at any Public Hearing. For this rule, an organization or group is treated as an individual speaker. It may have only one representative speaking on behalf of the organization or group.
- F. The City Clerk will set a timer for each speaker and begin timing the speaker once they start speaking. Time limits are to be strictly enforced by the Chair.
- G. All comments should be addressed to the City Council, relevant and germane to the subject matter of the Public Hearing, and should not be personal. Any comment irrelevant to the Public Hearing is out of order and will be addressed by the Chair.
- H. Speakers are expected to act respectfully toward all persons present at the hearing, including the City Council, the Mayor, the staff, other speakers, and those in the audience.
- I. Unruly behavior, such as booing, hissing, or harassing remarks, is prohibited. Continued behavior of this kind will be grounds for either recessing the Public Hearing to another time or for the Chair directing the Sergeant-at-Arms to remove the offending speaker or audience members from the Council chambers or other Public Hearing locations.
- J. A speaker may submit a written statement in addition to or in place of providing testimony before the City Council. If a speaker intends to submit a written statement to the record, an original must be submitted to the City Clerk, who will add it to the Letters of Record for the Public Hearing.
- K. Any questions raised by speakers during the public hearing will not be answered when posed. Instead, any questions will be reserved for the end of the Public Hearing and, if appropriate, answered by the applicant or City staff following the close of the comment period.
- L. A copy of “City Council and Public Hearing Procedures” will be available upon request and made available to the public at the beginning of every Public Hearing before the Duvall City Council.

Res 26-02 Adoption of Council Procedures

Final Audit Report

2026-05-08

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